

on so much of the testator's property as is subse-
 [*302] quently applied in paying * them (a). Executors, as
 between themselves and the persons interested in
 the residue, are at liberty to have recourse to any funds they
 please for payment of debts and legacies, but in adjusting
 the accounts between the tenant for life and remainder-
 man, they must be taken to have paid the debts and legacies
 not out of capital only or out of income only, but with *such*
portion of the capital, as together with the income of that por-
tion for one year from the testator's death, was sufficient for the
purpose (b). As to *contingent legacies* which may or may not
 become payable, the tenant for life is, from a rule of conven-
 ience, entitled to the income of the fund as part of the resi-
 due, until the contingency arises (c).

(β) **Where funds are in the state they ought to be.**—If a
 testator desire that his personal estate shall be laid out and
 invested either in Government or real securities, in trust for
 A. for life, with remainders over (d), or in a purchase of
 lands with a direction express (e) or implied (f) for the
 investment thereof in the mean time in Government or real
 securities, and that the lands to be purchased shall be in
 trust for A. for life, with remainders over, the income of the
Government and real securities of which the testator was pos-
 sessed at the time of his death (these being the very invest-
 ments contemplated by his will), belongs *from the time of the*
death to the tenant for life.

(γ) **Where the proper investment is made before the end of
 the year.**—If, during the first year, the *conversion* directed
 by the testator is *actually made*, the tenant for life is also

(a) *Holgate v. Jennings*, 24 Beav. 623; *Crawley v. Crawley*, 7 Sim. 427; *Cranley v. Dixon*, 23 Beav. 512; *Fletcher v. Stevenson*, 3 Hare, 371; *Allhusen v. Whittell*, 4 L. R. Eq. 295; as to the principle to be applied where the debt is compromised, see *Mac-laren v. Stainton*, 4 L. R. Eq. 448.

(b) *Allhusen v. Whittell*, 4 L. R. Eq. 295; *Lambert v. Lambert*, 16 L. R. Eq. 320; *Marshall v. Crowther*, 2 Ch. D. 199.

(c) *Allhusen v. Whittell*, 4 L. R. Eq. 305.

(d) *Hewitt v. Morris*, T. & R. 241; *La Terriere v. Bulmer*, 2 Sim. 18; *Allhusen v. Whittell*, 4 L. R. Eq. 295.

(e) *Angerstein v. Martin*, T. & R. 232.

(f) *Caldecott v. Caldecott*, 1 Y. & C. C. C. 312, 737.